

FIRST ENDORSEMENT

Chief Prosecutor Andre D. Applewhite, APU, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, March 22, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS Numbers 2020-22212 and 2020-22975 against Police Officer Malachi McKeith, Tax Registry Number 945983. On February 13, 2024, Assistant Deputy Commissioner-Trials Vanessa Facio-Lince approved the dismissal of the charges in DADS Number 2020-22212 in return for a recommended penalty of a Command Discipline Schedule (B) with the forfeiture of five (5) vacation days, and approved the dismissal of the charges in DADS Number 2020-22975 in return for a recommended penalty of a Command Discipline (B) with the forfeiture of five (5) vacation days, with the penalties to run consecutively to each other for a total penalty of a Command Discipline (B) with the forfeiture of TEN (10) vacation days.

Andre D. Applewhite

Andre D. Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2020-22212

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MCKENITH	FIRST MALACHI	M.I. B	COMMAND 040 PRECINCT
SHIELD NO. 2680	TAX REGISTRY NO. 945983	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Malachi Mckenith, on or about February 25, 2019, at approximately 2225, while assigned to 040 PCT and on duty, in the vicinity of Inside of § 87(2)(b) Street, Bronx County, wrongfully used excessive physical force against § 87(2)(b) by pulling § 87(2)(b) from the floor by his clothing, without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Malachi Mckenith, on or about February 25, 2019, at approximately 2225, while assigned to 040 PCT and on duty, in the vicinity of Inside of § 87(2)(b) Street, Bronx County, was discourteous, in that he spoke discourteously to § 87(2)(b) by saying, in sum and substance, "I don't give a shit and I don't give a fuck," without police necessity.	DISMISSED	

DC Brubio
FIRST DEPUTY COMMISSIONER

6/13/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

8/6/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2020-22975
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MCKENITH	FIRST MALACHI	M.I. B	COMMAND 040 PRECINCT
SHIELD NO. 2680	TAX REGISTRY NO. 945983	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Malachi Mckenith, on or about June 12, 2019, at approximately 2032, while assigned to 040 PCT and on duty, in the vicinity of Inside § 87(2)(b) Bronx County, wrongfully used excessive physical force against § 87(2)(b) in forcibly taking § 87(2)(b) body down to the floor, without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Br... 6/13/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab... 8/6/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner June 10, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case Nos. 2020-22212 and 2020-22975 against Police Officer Malachi McKenith, Tax No. 945983, with the recommendation that Police Officer McKenith receive a Schedule "B" Command Discipline, with the forfeiture of ten (10) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

AUG 06 2024

Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER